

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON ROBINSON,

Petitioner

VS.

SILVIA ROBINSON,

Respondent

) Case Number: FDI-26-802639

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

TEMPORARY EMERGENCY ORDER, VISITATION (PARENTING TIME), CHILD SUPPORT,
ALTERNATIVE RELIEF: OST

TENTATIVE RULING

The parties are ordered to appear in person or by Zoom video at 11am on 5/28/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Allison Robinson (Allison) and Respondent Silvia Robinson (Silvia) have one minor child together, Isabella (DOB 12/24/2024, age 1).
- 2) On 3/27/2026, Silvia filed an ex parte request for temporary emergency custody and parenting time orders (joint legal and physical custody of Isabella) or an order setting the matter for hearing on shortened time. She states that on 2/21/2026, Allison abruptly informed her, without prior notice, that she was moving out of the family home in San Francisco and taking Isabella with her to an undisclosed residence in Walnut Creek. According to Silvia, Allison has since restricted Silvia's parenting time to brief daytime visits supervised by the nanny, "despite my long-standing role as an equal—and often primary—caregiver." Allison filed a response to the ex parte request

1 on 3/27/2026, opposing the request and setting forth in detail her concerns. She states, among
2 other things, that Silvia “struggled with ongoing alcohol abuse” during the marriage and that the
3 problem “worsened and affected her behavior, judgment, reliability, and ability to safely parent
4 Isabella.” She states she repeatedly raised her concerns with Silvia and encouraged her to seek
5 help, “but her drinking continued and often occurred secretly, including by hiding alcohol in our
6 home.” The Court denied the ex parte request pending a hearing on the matter and set it for
7 readiness on shortened time on 4/6/2026.

- 8 3) The parties attended mediation and were unable to reach an agreement. The disposition report
9 from the mediation shows that Allison is requesting sole legal and physical custody of Isabella
10 with supervised visits and Soberlink requirements for Silvia, and that Silvia is requesting joint
11 legal and physical custody and a progressive plan that includes unsupervised visits and reaching a
12 50/50 schedule within 6 months.
- 13 4) On 5/20/2026, Silvia filed a reply in which she reiterates her request for joint legal and physical
14 custody of Isabella and an order for Allison to disclose her current residential address, including
15 apartment number. She also sets forth a proposed step-up parenting schedule that begins with the
16 first and third Saturday at 9am to Sunday at 5pm, every Wednesday from 9am to Thursday at
17 6pm, and on Fridays from 9am to 5pm on the second and fourth weekends of each month.

18 **B. Findings and Order**

- 19 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
20 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
21 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
22 child is the United States.
- 23 2) **The parties are ordered to appear in person or by Zoom video at 11am on 5/28/2026 in**
24 **Department 404.**
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